

Ghangas Breeding Farm And Hatchery v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 16 October 2025 · WRIT - C No. 36101 of 2025 · **Writ dismissed; liberty to CGRF under Clause 7.10; recovery on bill dated 02.08.2024 stayed pending Forum.**

HEADNOTE

After a Clause 6.5 application is rejected, the consumer's remedy against the bill is the Consumer Grievance Redressal Forum under Clause 7.10. Writ dismissed with liberty to approach the Forum within two weeks; Forum to decide within three months; recovery under the impugned bill stayed meanwhile.

FACTUAL SUMMARY

The petitioner challenged recovery under a bill dated 02.08.2024. An earlier writ (Writ C No. 19585 of 2025) had been disposed of on 12.06.2025 directing it to the authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Clause 6.5 application was rejected on 09.09.2025. In this second writ, the respondents submitted that the next remedy was the Consumer Grievance Redressal Forum under Clause 7.10. The petitioner did not dispute that course but sought a stay of recovery until the Forum decided the application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum-ombudsman-route-for-billing-grievances

HOLDING

Once a Clause 6.5 application has been rejected, the consumer's remedy against the bill is to approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005. The writ is dismissed with liberty to file before the Forum within two weeks; the Forum is to decide within three months; recovery under the impugned bill is stayed till disposal of that application, failing which the licensee may proceed in accordance with law. ¶ 4-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 After a Clause 6.5 application is rejected, the consumer's remedy against the bill is the Consumer Grievance Redressal Forum under Clause 7.10. Writ dismissed with liberty to approach the Forum within two weeks; Forum to decide within three months; recovery under the impugned bill stayed meanwhile. ¶ 4-6

clause-7.10-forum-ombudsman-route-for-billing-grievances After a Clause 6.5 application is rejected, the consumer's remedy against the bill is the Consumer Grievance Redressal Forum under Clause 7.10. Writ dismissed with liberty to approach the Forum within two weeks; Forum to decide within three months; recovery under the impugned bill stayed meanwhile. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE BILL DATED 02.08.2024 AND OF THE CLAUSE 6.5 REJECTION DATED 09.09.2025

Left to the Consumer Grievance Redressal Forum under Clause 7.10. ¶ 4-5

